

25STCV11911 25STCV11911

County: los-angeles

Division: Civil Law and Motion

Department: 509

Hearing date: 2026-07-17

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C509%2C07%2F17%2F2026

Source SHA-256: 004c8ebbb833f36e226fdbacd194754cf058fc58d693b18038c03947a2e7d71d

Case Number: 25STCV11911 Hearing Date: July 17, 2026 Dept: 509

The Friendship Foundation v. Linda Toibb

DEFENDANT'S MOTION TO QUASH

MOVING PARTY: Defendant Linda Toibb, individually and as trustee of the HLTT Trust

RESPONDING PARTY(S): Plaintiffs The Friendship Foundation and The Friendship Educational Foundation

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

Plaintiffs The Friendship Foundation and The Friendship Educational Foundation (collectively, Plaintiffs) filed this action against defendant Linda Toibb, individually and as trustee of the HLTT Trust (Defendant), asserting causes of action for: (1) breach of contract; and (2) promissory estoppel. Plaintiffs allege Defendant and her husband decedent Harris Toibb were large donors to many projects involving Plaintiffs. Plaintiffs allege that before decedent passed, decedent pledged over \$8 million to Plaintiffs but Defendant has refused to honor the pledge.

Defendant, filed a cross-complaint against Rabbi Joseph Mintz, The Friendship Foundation and The Friendship Educational Foundation, asserting causes of action for: (1) fraud by concealment; (2) intentional misrepresentation; (3) negligent misrepresentation; (4) breach of confidential relationship; (5) elder abuse; (6) reformation; (7) rescission; (8) breach of contract; (9) breach of contract; (10) declaratory relief; and (11) accounting.

Defendant now moves to quash the deposition subpoenas for production of business records issued by Plaintiffs to Defendant's bank, Wells Fargo Advisors, seeking various banking information and financial records. Plaintiffs opposed.

TENTATIVE RULING:

Defendant's Motion to Quash is GRANTED.

Defendant's Request for Attorney's Fees to be ARGUED at the hearing.

Defendant is ordered to give notice, unless waived.

DISCUSSION:

Motion to Quash

A. Legal Standard

A court may quash a subpoena entirely or partially, and issue an order to protect parties, witnesses or consumers from unreasonable or oppressive demands including violations of privacy. (Code Civ. Proc., § 1987.1.) A motion to quash the production of documents or tangible things requires a separate statement. (Cal. Rules of Court, rule 3.13459(a)(5).) “[U]pon motion reasonably made by the party, judges may rule upon motions for quashing, modifying or compelling compliance with, subpoenas.” (Lee v. Swansboro Country Property Owners Ass’n (2007) 151 Cal.App.4th 575, 582-583.)

B. Analysis

Defendant moves to quash the subpoena served Wells Fargo Advisors, seeking various banking information and financial records (the Subpoena). (See Wisnia Decl., Exh. 7.) There are twenty-two requests for documents.

Defendant’s position is that the Subpoena seeks documents that: “(1) violate Linda’s right to privacy, (2) are not relevant, nor “directly relevant” to the subject matter of the dispute, (3) are overbroad as to time and scope. It is also brought on the grounds that Friendship has issued the subpoena for improper purposes (including to oppress and harass Linda), and has failed to serve the required notices to consumer pursuant to CCP Section 1985.3 to the various Toibb affiliated entities (i.e., Toibb Delaware Trust).” (Not. of Mot. at p. 5:18-22.)

In opposition, Plaintiffs argues the Subpoena “seeks third-party evidence directly tied to issues Linda herself placed at the center of this case.” (Opp. at p. 2:2-3.)

“The party asserting a privacy right must establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious. [Citation.] The party seeking information may raise in response whatever legitimate and important countervailing interests disclosure serves, while the party seeking protection may identify feasible alternatives that serve the same interests or protective measures that would diminish the loss of privacy. A court must then balance these competing considerations.” (Williams v. Superior Ct. (2017) 3 Cal.5th 531, 552.) Because Defendant’s constitutional privacy rights are implicated, the burden is on Plaintiffs to demonstrate that the information sought are both (1) directly relevant to claims or defenses in this action (Britt v. Superior Court (1978) 20 Cal.3d 844, 859), and (2) not available through a less intrusive means of discovery (Allen v. Superior Court (1984) 151 Cal.App.3d 447, 453). The Court applies a “very liberal and flexible standard of relevancy,” such that any “doubts as to relevance should generally be resolved in favor of permitting discovery.” (Williams, supra, 3 Cal.5th at p. 542.)

However, here, Plaintiffs have not met that relaxed standard of relevancy as Plaintiffs have failed to demonstrate any tangible connection between the claims or defenses in this action and the requested discovery.

Evidence is relevant if it “ha[s] any tendency in reason to prove or disprove any disputed fact that is of consequence to the determination of the action.” (Evid. Code § 210.) “[A]ny party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence.” (Code of Civ. Pro. § 2017.010; Davies v. Superior Court (1984) 36 Cal.3d 291, 301 [“discovery is not limited to admissible evidence”].)

Plaintiffs make three arguments as to why the Subpoena seeks relevant evidence.

First, “Linda alleges Harris was vulnerable, elderly, in declining health, and susceptible to undue influence. (FACC ¶¶ 75-76, 91.) She alleges Mintz obtained the pledge agreements by undue influence and fraud. (FACC ¶¶ 85-91, 105-107.) Evidence from Wells Fargo about Harris’s account authority, financial instructions, advisor communications, meetings, transactions, investment activity, and ability to manage financial affairs directly bears on those allegations.” (Opp. at p. 5:10-15.) “The subpoena seeks records showing whether Harris continued to give instructions, communicate with financial professionals, control accounts, make investment decisions, and engage in trust-related activity. (Tippens Decl., Ex. 1, Attachment 3, Requests Nos. 1-8, 16-22.) It also seeks records showing whether Wells Fargo observed or recorded any concern about capacity, cognitive status, vulnerability, undue influence, elder abuse, suspicious activity, fraud, financial exploitation, compliance, legal, or risk review. (Id., Requests Nos. 9-10.)” (Opp. at p. 5:16-21.)

However, none of these requests are relevant to the allegation that Harris Toibb was vulnerable, elderly, or in declining health. Further, all requests that Plaintiffs cite to go well beyond Harris Toibb’s ability to manage his financial affairs. (See e.g. Request No. 4 [“All transaction histories trade confirmations, order tickets wire transfer records ACH records, check images, deposit records, withdrawal records, journal entries, internal transfer records, and cash movement records for each account identified in response to Request No. 1 during the RELEVANT TIME PERIOD.”]) The most relevant request out of all seventeen requests Plaintiffs cite is Request No. 10 which states: “All DOCUMENTS reflecting any elder abuse, vulnerable adult suspicious activity, fraud, undue influence, financial exploitation, unusual transaction, compliance, legal, or risk review concerning HARRIS, LINDA, the TRUST, TFF, the TOIBB DELAWARE TRUST, or HL TT REAL ESTA TE HOLDINGS during the RELEVANT TIME PERIOD.” However, by including “LINDA, the TRUST, TFF, the TOIBB DELAWARE TRUST, or HL TT REAL ESTA TE HOLDINGS during the RELEVANT TIME PERIOD” Plaintiffs have gone well beyond their own claimed purpose for discovering evidence “Harris was actively managing financial affairs” as Plaintiffs claim. (See Opp. at p. 5:22-23.) Indeed, it appears that Plaintiffs are seeking nearly every financial document within Wells Fargo’s control pertaining to Defendant, Harris Toibb, and numerous other non-parties associated with Defendant including after Harris Toibb’s passing. (See e.g. Requests Nos. 5-16; Definition No. 9, [“RELEVANT TIME PERIOD’ means January 1, 2018 through the date of production.”]) None of the requests seek only information relevant to Plaintiffs’ claims and defenses but appear to be designed to go beyond the stated purpose.

Second, Plaintiffs argue the Subpoena “is directly relevant to trust authority, post-death account control, and financial tracing.” (Opp. at p. 5:26-27.) Plaintiffs argue:

Linda alleges that Mintz was protector of the Toibb Delaware Trust, director of TFF, and connected to FF, FEF, JCC, and Chabad. (FACC ¶¶ 10, 14.) She alleges he used trust-related authority after Harris’s death to pressure payment. (FACC ¶ 36.) She alleges commingling and movement of funds among FF, FEF, JCC, and Chabad, including Toibb money allegedly reflected as held at JCC. (FACC ¶¶ 31-34, 112-113, 117-119.)

Wells Fargo records concerning TFF, the HLTT Trust, the Toibb Delaware Trust, HLTT Real Estate Holdings, post-death account-control changes, successor trustee activity, changes in authorized signers, account transfers, retitling, and communications with trustees, estate representatives, attorneys, accountants, investment advisors, bankers, or other representatives directly bear on those issues. (Tippens Decl., Ex. 1, Attachment 3, Requests Nos. 11-17, 19-22.)

(Opp. at p. 5:28-6:9.)

Again, while these allegations surrounding Mintz may warrant investigation into his involvement in the various entities, Plaintiffs Subpoena goes well beyond such inquiry. (See e.g. Request No. 15. [“ All DOCUMENTS reflecting any accounts, transactions, transfers, signatures, authorizations, instructions, or COMMUNICATIONS RELATING to any business, corporation partnership limited liability company, trust, foundation, or other entity for which HARRIS was an owner, co-owner trustee co-trustee, officer, director manager, member, partner fiduciary signatory, authorized trader, authorized representative, power of-attorney holder, investment decision-maker or other PERSON authorized to direct transactions during the RELEVANT TIME PERIOD.”]) Plaintiffs include entities that Plaintiffs have not demonstrated, nor alleged, are relevant to the requests. Further, Plaintiffs argues that “[Defendant] alleges commingling and movement of funds among FF, FEF, JCC, and Chabad, including Toibb money allegedly reflected as held at JCC” (Opp at p. 6:2-4.) However, Plaintiffs

expanded their Subpoena to include “the HLTT Trust, the Toibb Delaware Trust, HLTT Real Estate Holdings” which are not alleged to have had funds comingled. (Opp. at p. 6:5-6.) This pattern of including additional entities irrelevant to the action appears throughout the Subpoena.

Additionally, even if some relevant documents are within the scope of Plaintiffs’ Subpoena, Plaintiffs have not demonstrated this information is available through a less intrusive means of discovery. (Allen v. Superior Court, supra, 151 Cal.App.3d at p. 453. [“The court abused its discretion when it failed to require a less intrusive method of discovery.”]) This Court entertains serious doubts that the scope of this Subpoena is the least intrusive means of discovery. In their opposition, Plaintiffs have not addressed, and therefore not satisfied, this requirement to overcome Defendant’s privacy interests.

And finally, Plaintiffs argue “Linda’s prior opposition confirms that the financial discovery is relevant.” (Opp at p. 6:15.) However, that prior motion has zero weight on this current motion to quash as they involve entirely different balancing interests. [FN 1] The parties’ allegations and needs for discovery are naturally different. Further, this Court is not denying access to financial discovery outright. Instead, it independently balances Defendant’s privacy interests with the Plaintiffs’ need for discovery here.

In the end, when balancing Defendant’s privacy interests against Plaintiffs’ interest in discovery, this Court finds the balance shifts in favor of quashing the Subpoena. The Court finds each of the twenty-two requests are either irrelevant, overbroad, or the information may be available through a less intrusive means of discovery.

Accordingly, Defendant’s Motion to Quash is GRANTED IN ITS ENTIRETY.

C. Sanctions

In making an order pursuant to California Code of Civil Procedure section 1987.1, “the court may in its discretion award the amount of the reasonable expenses incurred in making or opposing the motion, including reasonable attorney’s fees, if the court finds the motion was made or opposed in bad faith or without substantial justification or that one or more of the requirements of the subpoena was oppressive.” (Code Civ. Proc., § 1987.2, subd. (a).)

The Court will hear further argument on whether either of these exceptions apply in this motion, and if not, what would be the reasonable amount to be awarded, and against whom.

IT IS SO ORDERED.

Dated: July 17, 2026 _____

Randolph M. Hammock

Judge of the Superior Court

FN 1 - Plaintiffs also argue “Linda previously took a similar practical position when seeking financial discovery from FF/FEF’s accountant.” (Opp. at p. 7:18-19.) The Court notes Plaintiffs took a position similar to Defendant’s current position in their own motion to quash.